



NON-DISCLOSURE AGREEMENT

Mutual Confidentiality Agreement

This Non-Disclosure Agreement (the "Agreement") is entered into as of _____ (the "Effective Date") by and between **One Smarter, Inc.**, a corporation with its principal place of business in Dayton, Ohio (the "Company"), and _____, with its principal place of business at _____ (the "Client"). The Company and the Client may each be referred to individually as a "Party" and collectively as the "Parties".

WHEREAS, the Parties wish to explore and/or engage in a business relationship relating to information technology consulting, software development, and related professional services (the "Purpose"), and in connection with the Purpose each Party may disclose to the other certain confidential and proprietary information; NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. Definition of Confidential Information

"Confidential Information" means any and all non-public information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether orally, in writing, electronically, or by any other means, including without limitation: business plans, financial information, pricing, customer and vendor lists, technical data, source code, software, system architecture, trade secrets, know-how, processes, designs, and any other information that is designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and the circumstances of its disclosure.

2. Exclusions

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was rightfully known to the Receiving Party prior to disclosure without an obligation of confidentiality; (c) is rightfully received from a third party without restriction and without breach of any obligation; or (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

3. Obligations of the Receiving Party

The Receiving Party shall: (a) hold the Confidential Information in strict confidence and protect it with at least the same degree of care it uses to protect its own confidential information, and in no event less than reasonable care; (b) use the Confidential Information solely for the Purpose; (c) not disclose the Confidential Information to any third party without the prior written consent of the Disclosing Party, except to its employees, officers, or advisors who have a need to know and who are bound by confidentiality obligations at least as protective as those in this Agreement; and (d) promptly notify the Disclosing Party upon discovery of any unauthorized use or disclosure.

4. Compelled Disclosure

If the Receiving Party is required by law, regulation, or court order to disclose Confidential Information, it shall, to the extent legally permitted, provide the Disclosing Party with prompt written notice so that the



Disclosing Party may seek a protective order or other appropriate remedy, and shall disclose only that portion of the Confidential Information that is legally required.

5. Term

This Agreement shall commence on the Effective Date and remain in effect for a period of two (2) years, unless terminated earlier by either Party upon thirty (30) days' written notice. The obligations of confidentiality shall survive termination of this Agreement for a period of three (3) years from the date of disclosure, and, with respect to trade secrets, for as long as such information remains a trade secret under applicable law.

6. Return or Destruction of Materials

Upon written request of the Disclosing Party, or upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information, including all copies, notes, and derivatives thereof, and shall certify such return or destruction in writing upon request.

7. No License or Warranty

Nothing in this Agreement grants either Party any rights, by license or otherwise, in or to the other Party's Confidential Information, except the limited right to use it for the Purpose. All Confidential Information is provided "AS IS" without warranty of any kind.

8. Remedies

Each Party acknowledges that unauthorized use or disclosure of Confidential Information may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek injunctive or other equitable relief, in addition to any other remedies available at law or in equity.

9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Ohio, without regard to its conflict of laws principles. The Parties consent to the exclusive jurisdiction of the state and federal courts located in Montgomery County, Ohio.

10. General Provisions

This Agreement constitutes the entire agreement between the Parties concerning its subject matter and supersedes all prior discussions and agreements relating thereto. No amendment shall be effective unless in writing and signed by both Parties. Neither Party may assign this Agreement without the prior written consent of the other Party. If any provision is held unenforceable, the remaining provisions shall remain in full force and effect. This Agreement may be executed in counterparts, each of which shall be deemed an original.



IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

Date of Agreement: _____

X

One Smarter, Inc.

X

